and reason, which the wit and craft [39 b] of those who are subtle and wicked has not abused. And therefore it appears by the preamble of the said Act of 34 H. 8. that when the King gave lands in tail to his loyal and faithful servants and subjects, intended not only to advance the donees, but the heirs in blood of their bodies, to the intent that the heirs of their bodies should have in special memory the profit which they have by the service of their ancestors, and thereby they themselves the better encouraged to do the like service to their Sovereign Lord the King, it was well done by the Parliament to tax the donees in suffering of false and feigned recoveries to subvert the intent of the King's gift and bounty by disinheriting their issues, *quia confirmat usum qui tollit abusum:* and yet such was the force of a common recovery in such case at the (*a*) common law, before the said Act of 34 H. 8. that the estate-tail by a common recovery was barred, although the reversion was in the King, and nothing could remedy it but an Act of Parliament. And therewith agrees 33 H. 8. Br. Tail 41. in Plo. Com. 555. And as the case on the stat. of (*b*) 11 H. 7. it was answered, that when the husband for the advancement of his wife, with a competent jointure, and preferment of the heirs of their two bodies begotten, has caused an estate to be made to himself and his wife in tail, and after the death of the husband the wife to disinherit the issues of the former husband, suffers a recovery, and conveys the lands to strangers to the husband's blood, such recovery was worthy by the Parliament to be noted with the mark to be suffered by covin; and the act of the wife either when she is sole, or of her and her second husband, is so odious, that a recovery had upon a good title against them by covin is void by the said Act; and therefore it is not to be resembled to the case at Bar; and yet there was no remedy in such case upon a common recovery, till the said Act of Parliament was made. So in the said Acts of (*c*) 32 H. 8. and 14. El. when a common recovery was had against tenant for life, to the prejudice of those who had the inheritance, it might well be called covinous, and by collusion. And yet in the same case, when tenant for life, the remainder to A. in tail, the remainder to B. in tail, &c. with divers remainders over, and tenant for life suffers a common recovery, in which he vouches A. and he the common vouchee, it shall bind all the other remainders; for no covin or conclusion can be supposed, when the next in remainder in tail who has the immediate inheritance is vouched; as it was adjudged in (*d*) *Jennings's case*, Trinit' 38 Elizabeth Rot. 2302. which case having great affinity with the case at Bar, I have reported next after this case. And as [40 a] to the said case of *The Earl of* (*e*) *Arundel*, anno 17 Eliz. First, nothing is spoken to that by any who argued in the case, so that it is not any authority for them who cite it. Also in the same case a recovery is intended to be restrained, but not a recovery with voucher, &c. as in every common recovery there is. And in divers Acts of Parliament, common recoveries have received allowance and advancement. And therefore the statute of (*a*) 7 H. 8. cap. 4. recites, that divers, as well nobles as others, have suffered common recoveries against them of divers of their manors, &c. for performance of their wills, for assurance of jointures to their wives, &c. The same Act in approbation of common recoveries, gives remedies to such recoveries in divers cases. And St. Germyn in his first book of the Dr. and Stud. cap. 26. approves common recoveries to bind as well in conscience as in law. And by the stat. of 23 El. cap. 4. it is enacted, that for avoiding of the danger to assurances of lands, and for advancement of common recoveries, that any common recovery shall not be avoided for any want of form in words, and not in the matter of substance. Note reader, *semper in* (*b*) *fictione juris subsistit æquitas, & contra negantem principia non*

(*a*) Co. Lit. 372. b.
(*b*) 11 H. 7. c. 20. 1 Co. 102. a. b. Winch. 43.
(*c*) 32 H. 1. c. 31. 14 El. cap. 8. Co. Lit. 362 a. 1 Co. 15, 16.
(*d*) 4 Co. 60. *Postea* 43. b. Co. Lit. 362. a. Cr. El. 562. 570. Co. En. 667. a. Moor 690. 1 And. 275. Winch. 43.
(*e*) *Ant.* 37. a. Dyer 342, 343. pl. 55, 56. 3 Co. 43. a. 6 Co. 41. a. Jenk. Cent. 242.
(*a*) Co. Lit. 104. b. Dr. & Stud. f. 45. a. Vaugh. 48. Dyer 31. pl. 213. 141. pl. 46. 19 H. 8. 12. a. Br. Mesne 23.
(*b*) 11 Co. 51. a. Co. Lit. 150. a. Palm. 454.

Digitized by Google